

Smt. Shakuntala Devi v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 17 May 2022 · WRIT - C No. - 6540 of 2022 · **Disposed with liberty to file Para 6.8 objection; coercive steps stayed.**

HEADNOTE

A writ to quash a recovery notice for Rs. 3,28,360 was disposed of without any opinion on the merits, with liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing within the next four weeks, and with coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Smt. Shakuntala Devi filed a writ petition to quash a recovery notice dated 12 April 2019 issued by respondent No. 3, the Power Distribution Corporation, demanding Rs. 3,28,360. The State of U.P. and two others were the respondents. Counsel for the Corporation stated on instructions that the petitioner could file an objection against the demand and that the objection would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objection to a recovery demand under Para 6.8

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent No. 3 within four weeks, along with a certified copy of the order. If filed in time, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The challenge to the recovery notice was not adjudicated. The petitioner was left to an objection under Para 6.8, to be heard and decided in accordance with law within the times fixed, with coercive recovery stayed until then. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY NOTICE DATED 12 APRIL 2019 FOR RS. 3,28,360 IS LAWFUL

The Court expressed no opinion on the merits and left the objection to be decided by respondent No. 3. ¶ 1